

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through a complaint filed by the SINDICATO UNIÓN DE POLICÍA MUNICIPAL, with NIF ***NIF.1 (hereinafter, claimant 1) dated 10/04/2023, of certain facts that could violate data protection legislation. Furthermore, on 08/08/2023, D. A.A.A., with DNI ***NIF.2 (hereinafter, claimant 2) submitted a complaint to the AEPD with content similar to the previous one, requesting to be recognized as a party in the present procedure.

On 10/04/2023, the Director of the AEPD urged the General Subdirectorate of Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate the AYUNTAMIENTO DE MADRID with NIF P2807900B (hereinafter, the complained party) in relation to the following facts:

The complaining party states that in the different units and dependencies of the Municipal Police Corps of the complained party, fire drills were conducted during January 2023 by the company Abantis, Consultoría y Asesoría, S.L. (hereinafter ACA).

On 25/01/2023, during the execution of the drill in the Integral District Unit of Usera of the Municipal Police, the police personnel had to use the document called Emergency Plan located in the red box labeled: EMERGENCY SELF-PROTECTION/EMERGENCY MEASURES/EXCLUSIVE USE OF FIRE BRIGADE. Currently, inside the box, there are two documents: one dated June 2019, and another dated October 2022. Inside the aforementioned Emergency Plans (specifically in the so-called Annex I. COMMUNICATION DIRECTORY), it was verified that the personal data and mobile phone numbers of each of the police officers were included, when these telephone data had never been provided by the affected police officers for these purposes, nor did they know that the complained entity had provided them to the company ACA to prepare the aforementioned Emergency Plan.

On the other hand, the complaining party claims to have verified that in other police units, the telephone data provided by the same General Directorate for all identified police officers corresponds to the landline of the Unit. Moreover, the very phone number provided by the General Director is not his personal mobile number, but also the landline of his offices.

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Furthermore, the claimant states that in the aforementioned list called

DIRECTORY OF COMMUNICATION of the Emergency Plans, some of the police employees of the UID of Usera listed are already retired, others have changed Units, and others are in a situation of temporary incapacity due to illness.

Claimant 1 has filed a complaint regarding these facts with the respondent on 13/02/2023, having received no response. In this complaint, the cessation of the use of the mobile phone numbers of the police officers and their communication to the company ACA is requested, the review of all emergency plans of the other units or dependencies of the municipal police regarding the use of personal mobile phones, notification to the AEP of the security breach, and the blocking of the personal mobile numbers until it is verified that they have been used in the emergency plan, adopting organizational measures that prevent their visibility and notifying the affected parties in case the aforementioned data is not blocked.

Along with the notification, the following is provided:

Copy of the General Instance with the complaint addressed to the General Directorate of Municipal Police of the respondent, dated 13/02/2023.

Copy of the two copies of the Emergency Plan of the Integral District Unit of Usera.

- 1st copy of the Emergency Plan U.I.D. Usera from June 2019.
- 2nd copy of the Emergency Plan U.I.D. Usera from October 2022.

Copy of the Emergency Plan of the Integral District Unit of Villa de Vallecas of the Municipal Police of Madrid.

Copy of the Emergency Plan of the Integral District Unit of Arganzuela of the Municipal Police of Madrid.

Resolution of Sanctioning Procedure PS/00480/2021 (exp. 202100091) from the Spanish Agency for Data Protection.

SECOND: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On 05/07/2023, the respondent responded to the request made by the AEPD on 21/06/2023, stating that once it became aware of the facts, it proceeded simultaneously to:

“Request the heads of the different dependencies to withdraw the Self-Protection Plans and complementary documentation from their respective boxes and safeguard them while their review is carried out to remove any possible personal data.

1. Consult about the alleged security breach with the Data Protection Office of the City Council of Madrid, which indicated that this is not a

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security breach, requiring additional documentation for a better assessment.

1.

Request the Economic-Administrative Deputy Directorate, responsible for contracting the service, to require the company that develops those Plans to proceed with the destruction of personal data that may have been processed by inadvertent error.

1.

Attached is the justification report for the minor contract and the proposal report for the award of the minor service contract to the company ABANTIS.

2.

Due to the improper handling that has occurred by the transfer of said document to the UPM, the events are being reported to the General Commissioner of Internal Regime, for the opening of the corresponding information file in order to determine any possible disciplinary responsibilities that may arise.

3.

As a result of the review of the Plans, it is detected that there is a list of similar characteristics in the Comprehensive District Police Station of Centro Sur, in addition to the one existing in the Comprehensive District Police Station of Usera, requesting the Commissioners of those dependencies to eliminate these, which they proceeded to do as indicated.

4.

Although the data contained in this document do not pose a risk to the affected individuals, it has been decided to eliminate them in the self-protection plans to prevent any further misuse as in this case, where an internal document was transferred to the UPM, without it having the legitimacy for its processing and also without proving the deletion of the same, nor providing information about the activity record of processing.

5.

On April 24, 2023, a letter was sent to the UPM from the General Director of the Municipal Police, informing of the measures adopted, Annex V is attached.

CONSIDERATIONS:

The preparation of the Self-Protection Plan is carried out in accordance with Decree 393/2007, of March 23, which approves the Basic Self-Protection Standard for centers, establishments, and dependencies dedicated to activities that may give rise to emergency situations. It is determined that the content of the Plan will be included in a single document whose structure and minimum content are included in its Annex II. In this regard, point 6.3 of the aforementioned annex requires the Information of Signatories of the Document identifying and detailing the functions of the persons and teams that will carry out the procedures for action in emergencies, as well as a "Communication Directory" that will contain the phone numbers of the emergency personnel included within this annex of "Minimum content of the self-protection plan," of the same legal text.

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This Plan is located in a box within the Police Stations, next to the building's security personnel, available to emergency personnel or services in the event of a potential risk.

As indicated in the justification report of the minor contract, the awarded company must conduct a training talk and carry out a first emergency drill adapted to the self-protection plan. This training is provided to personnel who volunteer to participate and be part of the emergency group.

For adequate coordination among the members of this emergency group, the Comprehensive District Police Stations of Usera and Centro Sur voluntarily completed a communication directory with the personal data of the agents responsible for the emergency, and by mistake included it in the Plan sent to ABANTIS. Among the data listed is the personal phone number of the agents, which, in the case of middle management, corresponds to the corporate phone number.

Of the 20 Comprehensive District Police Stations detailed in the justification report of the minor contract, where the service of updating and implementing the Plan is carried out, in addition to the other police stations, this error has only been detected in the two indicated dependencies, so we are facing a specific situation.

Regarding the request for the deletion of personal data made to ABANTIS, the company awarded the preparation of the plans, a responsible declaration of the destruction of personal data has been received. The processing carried out by that company consists, according to the request for proposal, in the collection of information for its printing and making it available to the Comprehensive District Police Stations, as well as a drill adapted to the implementation document, so it is not considered that there has been an exposure that could affect the rights of the interested parties, and the relevance of the data provided. Responsible declarations of the destruction of personal data are attached as Annex VI.

Likewise, this Superior Headquarters is not aware of any exercise of personal rights carried out by any member of the Comprehensive District Police Station of Usera in relation to the Plan, in contrast to the complaints of the police expressed by the UPM in point 5 of its presentation, which, on the other hand, contrasts with the voluntary nature of the personnel that makes up the emergency group in the police dependencies.

The personal data are recorded in the activity register of "Municipal Police Personnel," attached as Annex VII, published on the Madrid City Council website www.madrid.es, and have been necessary to comply with the provisions of Decree 393/2007, without prejudice to the accidental communication of the data to ABANTIS from the annex titled "Communication Directory."

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THIRD: On 11/10/2023, the Director of the AEPD agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a)

of the aforementioned GDPR.

FOURTH: After notifying the initiation agreement to the respondent, on 30/10/2023, they submitted a written statement of allegations in which they stated: that the processing of the personal telephone number is not widespread, as the existence of such data has only been detected in the CID of Usera and the CID of Centro Sur, which has been remedied by the deletion of data by the company ABANTIS as well as in the CIDs themselves; that it was on their own initiative that the participants considered they should provide their personal phone number to coordinate actions in case of emergency activation, and regarding the complaint of claimant 2, they indicate the lack of transparency that motivates their claim, having no knowledge of any opposition to the processing of their personal telephone number.

FIFTH: On 20/05/2024, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider the complaints filed and their documentation reproduced for evidentiary purposes, as well as the documents obtained and generated that are part of the procedure.
- To consider the allegations to the initiation agreement of the referenced sanctioning procedure, presented by the respondent, and the accompanying documentation reproduced for evidentiary purposes.

SIXTH: On 06/09/2023, a Proposal for Resolution was issued stating that the Director of the AEPD should declare that the respondent has infringed the provisions of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR. After notifying the aforementioned Proposal, the respondent submitted a written statement of allegations on 28/06/2024, summarizing: that public authorities have the obligation to guarantee the constitutional right of physical integrity of citizens, allocating measures for risk control and prevention of situations that may arise; that Law 17/2015, of July 9, on the National Civil Protection System, and under its auspices, Royal Decree 393/2007 was issued, which approves the Basic Self-Protection Regulation for centers, establishments, and dependencies dedicated to activities that may give rise to emergency situations; for the implementation of this protection model, the management of personal data, including telephone data, is required; the use of the telephone constitutes a necessary communication channel, in accordance with the coordination principle established in the law and the implementing Royal Decree; that in the Royal Decree, its Annex II on "Minimum content of the self-protection plan" contains, in turn, an Annex I "Communication Directory," which requires this data in its section "Emergency Personnel Phones," and that not all emergency personnel have a corporate telephone device, which is why they use their personal means, reinforcing the voluntariness and predisposition of this personnel; that the processing of the telephone data of the agents is legitimized as it is necessary to comply with a legal obligation imposed on the data controller, in addition to fulfilling a mission carried out in the public interest, without which the legal provisions expressed could not be successfully fulfilled.

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SEVENTH: From the actions taken in the present procedure, the following have been established:

PROVEN FACTS

FIRST. On 04/10/2023, a written communication from claimant 1, dated 04/10/2023, was received by the Spanish Agency for Data Protection, reporting facts that could violate data protection legislation. Likewise, on 08/08/2023, claimant 2 submitted a written communication, similar in content to the previous one, requesting to be recognized as a party in the present procedure.

The writings reveal that: "(...)"

2.- On January 25, 2023, during the execution of the drill at the Usera District Integral Unit of the Municipal Police, the police personnel had to use the document titled "Emergency Plan" located in the red box labeled: "SELF-PROTECTION PLAN/EMERGENCY MEASURES/EXCLUSIVE USE OF FIRE FIGHTERS." Currently, there are two documents: one dated June 2019 (IMAGE-1), and another dated October 2022 (IMAGE-2).

3.- Inside the aforementioned Emergency Plans (specifically in the so-called “Annex I. COMMUNICATION DIRECTORY”), it was verified that the personal data and mobile phone numbers of each of the police officers were included, even though these phone numbers had never been provided by the affected officers for these purposes, nor did they know that the police administration had transferred them to the company Abantis, Consulting and Advisory, SL, to prepare the aforementioned Emergency Plan.

4.- These phone numbers were provided by the General Directorate of Municipal Police to the aforementioned company, as the documents indicate the General Directorate as responsible for the implementation of the Plan and it is stated in the text that “Following the indication of the General Directorate of Municipal Police, no modifications have been made to this Annex regarding the Emergency Plan of June 2019, except in section A.I.1.” It was verified that this section (A.I.1) contains the names, surnames, and mobile phone numbers of the police employees.

5.- For these reasons, this union organization has received several complaints from the affected police officers, considering that the use and transfer of their phone numbers violates current legislation on the privacy of personal data.

6.- On the other hand, this union organization has verified that in other police units, the phone number provided by the same General Directorate for all identified police officers corresponds to the landline of the Unit. Moreover, the phone number provided by the General Director is not his personal mobile number, but also the landline of his offices. Given these circumstances, it is not understood why the personal mobile numbers of the police employees of the UID of Usera have been used and transferred.

7.- It is noted that in the aforementioned list called “COMMUNICATION DIRECTORY” of the Emergency Plans, some of the police employees of the UID of Usera listed are already retired, others have changed Units, and others are in a situation of temporary incapacity due to illness.

(...)”

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SECOND. Claimant 1 submitted a complaint in writing to the responding party on 13/02/2023, informing them of the facts claimed before the AEPD.

THIRD. Likewise, a written response from the responding party, dated 24/04/2023, to the complaint filed by the claimant is included.

FOURTH. An Emergency Plan for the Integrated Unit of the Usera District has been submitted. In Annex I, section A.I.1 Emergency Personnel Phone, the mobile phone numbers of the agents listed are included.

FIFTH. An email dated 16/02/2023, sent by the responding party, subject: Emergency Plans of the facilities, to the responsible parties of these facilities, states:

“..., following instructions from (...), it is communicated that in order to supervise the Emergency Plans of the different facilities of the Corps, the complete documentation that comprises it (Plan, annexes, personal emergency update sheets, etc.) is requested to be withdrawn, as well as its custody by the recipients of this email until the review of the same is carried out.”

Additionally, there is an email sent by the Deputy Director General of the Data Protection Office to AGPSyE - DGPM / Personal Data Protection in Police M, which states:

“(..."

If personal data has been transferred to the company awarded the referenced service, this has been done without legal or contractual coverage, therefore it is recommended that, as has been done, the company carry out the secure deletion of all personal data that has been provided to it, and that they provide a document that clearly identifies that the deletion process has been carried out, detailing when and how it was done.

(...)”

SIXTH. A RESPONSIBLE DECLARATION OF DATA DESTRUCTION from the company Abantis, Consulting and Advisory, S.L., states that:

"In compliance with the LOPDGDD, Abantis, Consulting and Advisory, S.L. has permanently deleted the mobile phones from Annex I "Communication Directory" of the Emergency Plan, provided by the Integrated Police Station of the Central South District as contact data for the members of the Emergency Team."

SEVENTH. A RESPONSIBLE DECLARATION OF DATA DESTRUCTION from the company Abantis, Consulting and Advisory, S.L., states that:

"In compliance with the LOPDGDD, Abantis, Consulting and Advisory, S.L. has permanently deleted the mobile phones from Annex I "Communication Directory" of the Emergency Plan, provided by the Integrated Police Station of the Usera District as contact data for the members of the Emergency Team."

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EIGHTH. A justification report for the minor contract, request for offer, and proposal for service award, which was awarded to the company Abantis, has been submitted.

NINTH. The Activity Register of Processing has been submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the Resolution Proposal

The responding party in its written allegations has stated that public authorities have the obligation, among others, to guarantee the constitutional right to the physical integrity of citizens, allocating measures for risk control and prevention of situations that may arise for this purpose. In this regard, Law 17/2015, of July 9, on the National Civil Protection System (hereinafter LSNPC), establishes that the heads of centers, establishments, and public dependencies that generate a risk of emergency are obliged to adopt self-protection measures.

Under this framework, Royal Decree 393/2007, of March 23, which approves the Basic Self-Protection Standard for centers, establishments, and dependencies dedicated to activities that may give rise to emergency situations, is issued, as this is an essential document to respond to possible emergency situations in this area that may occur in the different police dependencies and that for its implementation requires the management of personal data, including telephone data, which are subsequently reflected in the "Communication Directory," as determined by that royal decree; in the R.D. its Annex II "Minimum content of the self-protection plan" contains, in turn, an Annex I "Communication Directory," which requires this data in its section "Emergency Personnel Phones."

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Firstly, it is true, as the LSNPC states in its preamble, that “This new law aims to strengthen the mechanisms that enhance and improve the functioning of the national system for the protection of citizens in the face of emergencies and disasters, which was already anticipated by the previous law. This civil protection system is understood as an instrument of public safety, integrated into the National Security policy. A system that will facilitate the cooperative, coordinated, and efficient exercise of the competencies distributed by constitutional doctrine among the Public Administrations, in light of new circumstances and social demands, by openly and flexibly interconnecting the plurality of services and actions aimed at the common objective.”

On the other hand, it should be noted that the LSNPC has not been complemented by the Basic Civil Protection Regulation, approved by Royal Decree 407/1992, of April 24, nor by the Basic Self-Protection Regulation, approved by Royal Decree 393/2007, of March 23, as can be seen, they are prior to the LSNPC; although they were complementary to the latter, which came to replace the former, namely, Law 2/1985, of January 21, on Civil Protection.

Under the LSNPC, Royal Decree 524/2023, of June 20, was issued, which approves the Basic Civil Protection Regulation, in whose derogatory provision it is stated that:

Single derogatory provision. Regulatory repeal.

1. The Basic Civil Protection Regulation, approved by Royal Decree 407/1992, of April 24, as well as Royal Decree 1378/1985, of August 1, on provisional measures for action in emergency situations in cases of serious risk, disaster, or public calamity, and any provisions of equal or lower rank that oppose, contradict, or are incompatible with the provisions of this royal decree, are hereby repealed.

2. Likewise, the following are repealed:

(...)

d) The Basic Self-Protection Regulation for centers, establishments, and dependencies dedicated to activities that may give rise to emergency situations, approved by Royal Decree 393/2007, of March 23.

(...)

Secondly, it is true that the telephone is considered a necessary communication channel in certain circumstances according to the coordination principle established in the law and the implementing Royal Decree, but in no case is it stated or included that the telephone data must be the personal mobile number of the agent.

It cannot be accepted that the processing of the personal mobile phone data of the agents is legitimized by being necessary to comply with a legal obligation required of the data controller, in addition to the fulfillment of a mission carried out in the public interest, because no regulation states this nor does the public interest raise it.

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The mobile phone number is another piece of personal data of the agent and must be treated with the same confidentiality as the rest of their personal data.

Furthermore, if such personal data of the agent is so important, how is it possible that it appears in some Emergency Plans and not in others? What is the reason for the privilege or the aggravation?

It should be noted that what is very important for the Emergency Plan of the Integral Unit of the Usera District and South Center, Annex I, section A.I.1 Emergency Personnel Phone lists the mobile phones of the agents that appear in the list, not raising that interest in the Emergency Plan of the Integral Unit of the Vallecas District, which has similar content to that prepared for the Usera District and South Center, in whose Annex I, section A.I.1 Emergency Personnel Phone lists, contrary to the previous ones, the corporate phones and not the personal mobiles of the agents that appear in the list.

For all these reasons, the allegations made by the responding party cannot be accepted.

III

Unfulfilled obligation: infringement of Article 6.1 GDPR

The facts revealed are materialized in the accreditation arising from the practice of a fire drill, in the so-called Emergency Plan, where personal data along with the personal mobile phone numbers of each of the police officers were recorded, these last data which have not been provided or authorized by them, which could imply a violation of the regulations on the protection of personal data.

This processing could constitute an infringement of Article 6.1 of the GDPR, Lawfulness of processing, which states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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f) The processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that these interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

Also, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis established in accordance with the law, whether in this Regulation or under another law of the Union or of the Member States to which this Regulation relates, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of executing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment or combination, restriction, erasure, or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them.”

The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the affected party is involved or for the

application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that these interests do not prevail over the interests or the rights and freedoms of the data subject.

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fundamental freedoms of the affected party that require the protection of such data. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

Claimant 1 has stated that: “(...) On January 25, 2023, during the execution of the drill at the Integrated District Unit of Usera of the Municipal Police, the police personnel had to use the document entitled ‘Emergency Plan’ that is located in the red box labeled: ‘SELF-PROTECTION PLAN/EMERGENCY MEASURES/EXCLUSIVE USE OF FIRE BRIGADE’.

3.- Inside the aforementioned Emergency Plans (specifically in the so-called ‘Annex I. COMMUNICATION DIRECTORY’), it was verified that the personal data and mobile phone numbers of each of the police officers were listed, when these telephone data had never been provided by the affected police officers for these purposes, nor did they know that the police administration had transferred them to the company Abantis, Consulting and Advisory, SL, to prepare the aforementioned Emergency Plan.

4.- These telephone data were provided by the General Directorate of Municipal Police to the aforementioned company, as the documents indicate the General Directorate as responsible for the implementation of the Plan and it is stated in its text that “Following the indication of the General Directorate of Municipal Police, no modifications have been made to this Annex regarding the Emergency Plan of June 2019, except in section A.I.1.” It was verified that this section (A.I.1) contains the names, surnames, and mobile phone numbers of the police employees.

5.- For these reasons, this trade union organization has received several complaints from the affected police officers, considering that the use and transfer of their telephone data violates current legislation on the privacy of personal data.

(...)

In the Emergency Plan of the District of Usera, section A.I.1 lists the Emergency Personnel Phone Numbers in its ANNEX I, including the personal mobile phones of the agents listed.

The party being claimed in the document dated 07/05/2023 in response to the information request from the AEPD, as noted in Background Second, stated that:

“(...)

For adequate coordination among the members of that emergency group, the CID of Usera and Centro Sur mutually completed a communication directory with the personal data of the agents responsible for the emergency, and by mistake included it in the Plan that was sent to ABANTIS. Among the data listed is the personal phone number of the agents...

Of the 20 CIDs detailed in the report of the minor contract, where the service of updating and implementing the Plan is carried out, in addition to the other police stations,

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only that error has been detected in the two indicated departments, so we are facing

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situation.

(...)"

Likewise, in the aforementioned document, it was indicated that once he became aware of the facts, he proceeded to: "Request the responsible parties from the different departments to withdraw the Self-Protection Plans and complementary documentation from their respective boxes and to safeguard them while a review is conducted to remove any possible personal data.

(...)

"2. Request the General Economic-Administrative Subdirector, responsible for contracting the service, to require the company that develops those Plans to proceed with the destruction of any personal data that may have been processed by inadvertent error."

In this same sense, there is an email dated 16/02/2023, sent by the General Subdirector of the Data Protection Office, which contains the following:

"(...)

If personal data has been transferred to the company awarded the referenced service, this has been done without legal or contractual coverage, so it is recommended that, as has been done, the company carry out the secure deletion of all personal data that has been provided to it, and that they provide a document clearly identifying that the deletion process has been carried out, detailing when and how it was done.

(...)" (the underlinings correspond to the AEP).

And in connection with the above, the company awarded the service proceeded to eliminate the mobile phone numbers from Annex I "Communication Directory" of the Emergency Plan, provided by the Comprehensive Police Station of the Central-South District as well as from the Usera District.

Claimant 1 has submitted the Emergency Plan for the Comprehensive Unit of the Vallecas District, which has similar content to that prepared for the Usera and Central-South districts. In Annex I, section A.I.1 Emergency Personnel Phone, corporate phones are listed, unlike the CID mentioned in the previous paragraph, and not the personal mobile phones of each of the agents listed.

Therefore, in consideration of the above, it is deemed that the conduct of the respondent violates the principle of lawfulness enshrined in Article 6.1 of the GDPR, an infringement classified in Article 83.5 a) of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

Article 83.5 a) of the GDPR considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to sanction.

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For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

Also, the LOPDGDD, for the purposes of prescription, in its Article 72 indicates:

"Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

V

Applicable regime to the data controller

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes: “Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

The LOPDGDD in its Article 77, Regime applicable to certain categories of controllers or processors, establishes the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or in charge:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

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The resolution will be notified to the responsible party or data processor, to the hierarchical body to which they belong, if applicable, and to the affected parties who had the status of interested parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that apply.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, with an explicit indication of the identity of the responsible party or data processor who committed the infringement.

When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be subject to what its specific regulations provide.

In the case examined, the present sanctioning procedure arises, as stated in the facts, from the violation by the claimed party of the regulations on personal data protection regarding the legitimacy of the processing.

According to the available evidence, this conduct constitutes, on the part of the claimed party, a violation of the provisions of Article 6.1 of the GDPR.

It should be noted that the GDPR, without prejudice to what is established in its Article 83, contemplates in its Article 77 the possibility of declaring the infringement and establishing the measures that are appropriate to correct the processing of personal data that do not comply with its

provisions, when the responsible parties or processors listed in section 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law.

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VI

Adoption of Measures

In this case, it is not appropriate to impose the adoption of measures as the data included in the Emergency Plans of the Integrated Units of the affected Districts, which are the subject of the actions and investigations of this procedure, have been eliminated, both by the City Council and by the awarded service company.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been accredited,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF MADRID, with NIF P2807900B, has infringed the provisions of Article 6.1 of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF MADRID.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the

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The day following the notification of this resolution, the precautionary suspension would be considered concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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